

1 ENGROSSED SENATE
2 BILL NO. 1316

By: Bergstrom and Bullard of
the Senate

3 and

4 Kendrix of the House

5
6 [administrative rules - sunset - permanent rules -
7 review - report - renewal - codification - effective
8 date]

9 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

10 SECTION 1. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 250.11 of Title 75, unless there
12 is created a duplication in numbering, reads as follows:

13 A. As used in this act:

14 1. "Agency" shall have the same meaning as provided for in
15 Section 250.3 of Title 75 of the Oklahoma Statutes;

16 2. "Obsolete" means expired, unused, void, unenforceable, or
17 not enforced;

18 3. "Outdated" means no longer applicable or pertinent,
19 duplicative with other portions of the Oklahoma Administrative Code,
20 or superseded by other laws; and

21 4. "Unnecessary" means that public health, safety, and welfare
22 are not served by the portion of Oklahoma Administrative Code.

23 B. On January 1, 2028, and on January 1 every eight (8) years
24 thereafter, the permanent rules promulgated by or on behalf of the

1 following agencies shall sunset, and the following agencies shall
2 submit to the Legislature their permanent rules adopted pursuant to
3 the Administrative Procedures Act for review:

4 1. The Oklahoma Abstractors Board;

5 2. The Department of Wildlife Conservation's permanent rules
6 promulgated as part of OAC 800:1 through OAC 800:15;

7 3. The Oklahoma Used Motor Vehicle, Dismantler, and
8 Manufactured Housing Commission;

9 4. The Oklahoma Center for the Advancement of Science and
10 Technology;

11 5. The Oklahoma Capitol Improvement Authority;

12 6. The State Board of Examiners of Perfusionists;

13 7. The J.M. Davis Memorial Commission;

14 8. The State Board of Behavioral Health Licensure;

15 9. The Oklahoma Department of Libraries;

16 10. The Oklahoma Broadband Office;

17 11. The Oklahoma Space Industry Development Authority;

18 12. The Oklahoma Conservation Commission;

19 13. The Oklahoma New Motor Vehicle Commission;

20 14. The Office of Disability Concerns;

21 15. The Oklahoma State Board of Examiners for Long-Term Care
22 Administrators;

23 16. The Oklahoma Funeral Board;

1 17. The Board of Examiners for Speech-Language Pathology and
2 Audiology;

3 18. The Health Care Workforce Training Commission;

4 19. The Oklahoma Board of Licensed Alcohol and Drug Counselors;

5 20. The Department of Human Services' permanent rules
6 promulgated as part of OAC 340:1 through OAC 340:33;

7 21. The State Board of Licensed Social Workers;

8 22. The Oklahoma Boll Weevil Eradication Organization;

9 23. The Oklahoma Horse Racing Commission;

10 24. The Oklahoma Educational Television Authority;

11 25. The State Textbook Committee; and

12 26. The Oklahoma Turnpike Authority's permanent rules
13 promulgated as part of OAC 731:1 through OAC 731:5.

14 C. On January 1, 2029, and on January 1 every eight (8) years
15 thereafter, the permanent rules promulgated by or on behalf of the
16 following agencies shall sunset, and the following agencies shall
17 submit to the Legislature their permanent rules adopted pursuant to
18 the Administrative Procedures Act for review:

19 1. The Alcoholic Beverage Laws Enforcement Commission;

20 2. The State Board of Cosmetology and Barbering;

21 3. The Department of Wildlife Conservation's permanent rules
22 promulgated as part of OAC 800:16 through OAC 800:30 and any
23 permanent rules promulgated under OAC 800:31 and above;

24 4. The State Board of Veterinary Medical Examiners;

- 1 5. The Oklahoma Arts Council;
- 2 6. The State Board of Examiners of Psychologists;
- 3 7. The Archives and Records Commission;
- 4 8. The Board of Podiatric Medical Examiners;
- 5 9. The Oklahoma Historical Society;
- 6 10. The Oklahoma Liquefied Petroleum Gas Board;
- 7 11. The Corporation Commission;
- 8 12. The Board of Directors of the Tobacco Settlement Endowment
- 9 Trust Fund;
- 10 13. The Oklahoma Municipal Power Authority;
- 11 14. The Board of Dentistry;
- 12 15. The Council on Law Enforcement Education and Training;
- 13 16. The J.D. McCarty Center for Children with Developmental
- 14 Disabilities;
- 15 17. The Board of Medicolegal Investigations;
- 16 18. The Oklahoma Health Care Authority's permanent rules
- 17 promulgated as part of OAC 317:1 through OAC 317:77;
- 18 19. The Department of Human Services' permanent rules
- 19 promulgated as part of OAC 340:34 through OAC 340:67;
- 20 20. The Oklahoma State Regents for Higher Education; and
- 21 21. The Oklahoma Turnpike Authority's permanent rules
- 22 promulgated as part of OAC 731:6 through OAC 731:10 and any
- 23 permanent rules promulgated under OAC 731:11 and above.
- 24

1 D. On January 1, 2030, and on January 1 every eight (8) years
2 thereafter, the permanent rules promulgated by or on behalf of the
3 following agencies shall sunset, and the following agencies shall
4 submit to the Legislature their permanent rules adopted pursuant to
5 the Administrative Procedures Act for review:

6 1. The Oklahoma Accountancy Board;

7 2. The State Board of Medical Licensure and Supervision;

8 3. The Office of the State Auditor and Inspector;

9 4. The Oklahoma Tourism and Recreation Department's permanent
10 rules promulgated as part of OAC 725:1 through OAC 725:17;

11 5. The Oklahoma Employment Security Commission;

12 6. The Oklahoma Department of Agriculture, Food, and Forestry's
13 permanent rules promulgated as part of OAC 35:1 through OAC 35:27;

14 7. The Oklahoma Medical Marijuana Authority's permanent rules
15 promulgated as part of OAC 442:1 through OAC 442:5;

16 8. The Office of the State Treasurer;

17 9. The Department of Human Services' permanent rules
18 promulgated as part of OAC 340:68 through OAC 340:101;

19 10. The Oklahoma Department of Veterans Affairs;

20 11. The Oklahoma Board of Nursing;

21 12. The Oklahoma Water Resources Board;

22 13. The State Board of Osteopathic Examiners;

23 14. The Grand River Dam Authority;

24 15. The Department of Corrections;

1 16. The Office of Juvenile Affairs;

2 17. The Oklahoma Indigent Defense System;

3 18. The Oklahoma Health Care Authority's permanent rules
4 promulgated as part of OAC 317:78 through OAC 317:155 and any
5 permanent rules promulgated under OAC 317:156 and above;

6 19. The Commissioners of the Land Office;

7 20. The Oklahoma Board of Private Vocational Schools; and

8 21. The Statewide Charter School Board.

9 E. On January 1, 2031, and on January 1 every eight (8) years
10 thereafter, the permanent rules promulgated by or on behalf of the
11 following agencies shall sunset, and the following agencies shall
12 submit to the Legislature their permanent rules adopted pursuant to
13 the Administrative Procedures Act for review:

14 1. The Board of Governors of the Architects, Landscape
15 Architects and Licensed Interior Designers of Oklahoma;

16 2. The Oklahoma Medical Marijuana Authority's permanent rules
17 promulgated as part of OAC 442:6 through OAC 442:10 and any
18 permanent rules promulgated under OAC 442:11 and above;

19 3. The Construction Industries Board;

20 4. Service Oklahoma's permanent rules promulgated as part of
21 OAC 670:1 through OAC 670:6;

22 5. The Oklahoma Uniform Building Code Commission;
23
24

1 6. The Department of Human Services' permanent rules
2 promulgated as part of OAC 340:102 through OAC 340:130 and any
3 permanent rules promulgated under OAC 340:131 and above;

4 7. The Oklahoma Tourism and Recreation Department's permanent
5 rules promulgated as part of OAC 725:18 through OAC 725:35 and any
6 permanent rules promulgated under OAC 725:36 and above;

7 8. The Oklahoma Tax Commission's permanent rules promulgated as
8 part of OAC 710:1 through OAC 710:31;

9 9. The Oklahoma Department of Agriculture, Food, and Forestry's
10 permanent rules promulgated as part of OAC 35:28 through OAC 35:55
11 and any permanent rules promulgated under OAC 35:56 and above;

12 10. The Office of Management and Enterprise Services' permanent
13 rules promulgated as part of OAC 260:1 through OAC 260:45;

14 11. The State Department of Rehabilitation Services;

15 12. The Board of Tests for Alcohol and Drug Influence;

16 13. The Pardon and Parole Board;

17 14. The Board of Chiropractic Examiners;

18 15. The Department of Mental Health and Substance Abuse
19 Services' permanent rules promulgated as part of OAC 450:1 through
20 OAC 450:25;

21 16. The Oklahoma Firefighters Pension and Retirement Board;

22 17. The Commission for Educational Quality and Accountability;

23 18. The Insurance Department;

24 19. The Oklahoma Law Enforcement Retirement Board; and

1 20. The Capitol-Medical Center Improvement and Zoning
2 Commission.

3 F. On January 1, 2032, and on January 1 every eight (8) years
4 thereafter, the permanent rules promulgated by or on behalf of the
5 following agencies shall sunset, and the following agencies shall
6 submit to the Legislature their permanent rules adopted pursuant to
7 the Administrative Procedures Act for review:

8 1. The Banking Board;

9 2. The Office of Management and Enterprise Services' permanent
10 rules promulgated as part of OAC 260:46 through OAC 260:91;

11 3. The Department of Consumer Credit;

12 4. Service Oklahoma's permanent rules promulgated as part of
13 OAC 670:7 through OAC 670:12;

14 5. The Oklahoma Lottery Commission;

15 6. The Oklahoma Tax Commission's permanent rules promulgated as
16 part of OAC 710:32 through OAC 710:63;

17 7. The Oklahoma Department of Commerce;

18 8. The Department of Mental Health and Substance Abuse
19 Services' permanent rules promulgated as part of OAC 450:26 through
20 OAC 450:50;

21 9. The Oklahoma Development Finance Authority;

22 10. The Oklahoma Housing Finance Agency;

23 11. The Oklahoma Department of Securities;

24 12. The Oklahoma Police Pension and Retirement Board;

1 13. The Oklahoma State Bureau of Investigation;

2 14. The Oklahoma Public Employees Retirement System Board of
3 Trustees;

4 15. The State Department of Health's permanent rules
5 promulgated as part of OAC 310:1 through OAC 310:170;

6 16. The Office of the Secretary of State;

7 17. The Oklahoma Commission on Children and Youth; and

8 18. The Long-Range Capital Planning Commission.

9 G. On January 1, 2033, and on January 1 every eight (8) years
10 thereafter, the permanent rules promulgated by or on behalf of the
11 following agencies shall sunset, and the following agencies shall
12 submit to the Legislature their permanent rules adopted pursuant to
13 the Administrative Procedures Act for review:

14 1. The State Fire Marshal;

15 2. The Board of Trustees of the Teachers' Retirement System of
16 Oklahoma;

17 3. The Department of Labor;

18 4. Service Oklahoma's permanent rules promulgated as part of
19 OAC 670:13 through OAC 670:18;

20 5. The Incentive Evaluation Commission;

21 6. The Department of Mines;

22 7. The Office of Management and Enterprise Services' permanent
23 rules promulgated as part of OAC 260:92 through OAC 260:135 and any
24 permanent rules promulgated under OAC 260:136 and above;

1 8. The Oklahoma Tax Commission's permanent rules promulgated as
2 part of OAC 710:64 through OAC 710:95 and any permanent rules
3 promulgated under OAC 710:96 and above;

4 9. The Oklahoma State Bureau of Narcotics and Dangerous Drugs
5 Control;

6 10. The Department of Mental Health and Substance Abuse
7 Services' permanent rules promulgated as part of OAC 450:51 through
8 OAC 450:75 and any permanent rules promulgated under OAC 450:76 and
9 above;

10 11. The State Department of Health's permanent rules
11 promulgated as part of OAC 310:171 through OAC 310:341;

12 12. The Office of the Attorney General's permanent rules
13 promulgated as part of OAC 75:1 through OAC 75:27;

14 13. The University Hospitals Authority; and

15 14. The University Hospitals Trust.

16 H. On January 1, 2034, and on January 1 every eight (8) years
17 thereafter, the permanent rules promulgated by or on behalf of the
18 following agencies shall sunset, and the following agencies shall
19 submit to the Legislature their permanent rules adopted pursuant to
20 the Administrative Procedures Act for review:

21 1. The Oklahoma Real Estate Commission;

22 2. The Real Estate Appraiser Board;

23 3. The State Board of Licensure for Professional Engineers and
24 Surveyors;

1 4. The Department of Public Safety's permanent rules
2 promulgated as part of OAC 595:1 through OAC 595:37;

3 5. The Board of Examiners in Optometry;

4 6. The State Department of Health's permanent rules promulgated
5 as part of OAC 310:342 through OAC 310:512;

6 7. The State Board of Pharmacy;

7 8. The State Board of Career and Technology Education's
8 permanent rules promulgated as part of OAC 780:1 through OAC 780:17;

9 9. The State Board of Education's permanent rules promulgated
10 as part of OAC 210:1 through OAC 210:20;

11 10. The Transportation Commission's permanent rules promulgated
12 as part of OAC 730:1 through OAC 730:25;

13 11. Service Oklahoma's permanent rules promulgated as part of
14 OAC 670:19 through OAC 670:25 and any permanent rules promulgated
15 under OAC 670:26 and above;

16 12. The Administrative Office of the Courts; and

17 13. The Office of the Attorney General's permanent rules
18 promulgated as part of OAC 75:28 through OAC 75:55 and any permanent
19 rules promulgated under OAC 75:56 and above.

20 I. On January 1, 2035, and on January 1 every eight (8) years
21 thereafter, the permanent rules promulgated by or on behalf of the
22 following agencies shall sunset, and the following agencies shall
23 submit to the Legislature their permanent rules adopted pursuant to
24 the Administrative Procedures Act for review:

1 1. The Oklahoma State Athletic Commission;

2 2. The Oklahoma Energy Resources Board;

3 3. The Department of Environmental Quality;

4 4. The Department of Public Safety's permanent rules
5 promulgated as part of OAC 595:38 through OAC 595:75 and any
6 permanent rules promulgated under OAC 595:76 and above;

7 5. The State Department of Health's permanent rules promulgated
8 as part of OAC 310:513 through OAC 310:681 and any permanent rules
9 promulgated under OAC 310:682 and above;

10 6. The State Board of Career and Technology Education's
11 permanent rules promulgated as part of OAC 780:18 through OAC 780:35
12 and any permanent rules promulgated under OAC 780:36 and above;

13 7. The State Board of Education's permanent rules promulgated
14 as part of OAC 210:21 through OAC 210:40 and any permanent rules
15 promulgated under OAC 210:41 and above;

16 8. The Oklahoma Workers' Compensation Commission;

17 9. The Oklahoma Aerospace and Aeronautics Commission;

18 10. The Transportation Commission's permanent rules promulgated
19 as part of OAC 730:26 through OAC 730:50 and any permanent rules
20 promulgated under OAC 730:51 and above;

21 11. The Council on Judicial Complaints;

22 12. The District Attorneys Council; and

23 13. The State Election Board.
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1 J. Prior to submission of permanent rules as required by
2 subsections B through I of this section, an agency shall review its
3 enabling statutes and associated statutes relating to the agency's
4 powers and duties. Each agency shall prepare a report to accompany
5 its submission of permanent rules. The report:

6 1. Shall include any statutory provisions that are deemed by
7 the agency to be obsolete, outdated, or unnecessary. The report
8 shall include for each identified statutory provision a concise
9 notation as to why it should be repealed or otherwise removed from
10 the Oklahoma Statutes;

11 2. Shall state whether the substantive content in the submitted
12 permanent rules is still necessary and, if it is determined to be
13 necessary, the rationale for such determination;

14 3. Shall state whether necessary permanent rule content would
15 be more appropriately integrated into the Oklahoma Statutes;

16 4. Shall include the frequency with which the substantive
17 content of the permanent rules has been updated in the prior five
18 (5) years and the anticipated frequency of updates in the future;

19 5. May include information regarding additional provisions in
20 statute that are not within the agency's purview but have been
21 identified by the agency as being obsolete, outdated, or
22 unnecessary; and

23 6. May include information regarding provisions in statute that
24 could be made more concise through legislative action.

1 K. An agency shall electronically submit the report required by
2 subsection J of this section with its permanent rules, prior to the
3 applicable sunset date established by subsections B through I of
4 this section, to the President Pro Tempore of the Senate, the
5 Speaker of the House of Representatives, and the chair of the
6 committee in each house established or designated to review
7 administrative rules pursuant to Section 307.1 of Title 75 of the
8 Oklahoma Statutes.

9 L. Permanent rules submitted to the Legislature pursuant to the
10 provisions of subsections B through I of this section:

11 1. Shall be subject to the review, approval, and disapproval
12 provisions provided for in Section 308 of Title 75 of the Oklahoma
13 Statutes; and

14 2. May be renewed for additional terms of eight (8) years, or
15 fewer, by the Legislature by approval and enactment of a joint
16 resolution.

17 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the Senate the 25th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives